

HOUSE No. 597**The Commonwealth of Massachusetts**

PRESENTED BY:

James K. Hawkins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring full reimbursement for in-district school transportation costs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/14/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>2/14/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/14/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/14/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>2/14/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/14/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>2/14/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>2/14/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/14/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>2/14/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/14/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/14/2025</i>
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>2/14/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/14/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/24/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/24/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/24/2025</i>

<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>3/24/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>3/24/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>3/24/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/24/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>3/24/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>4/2/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>4/8/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/14/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>4/30/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>6/2/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>6/4/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>6/11/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>7/5/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>9/12/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>2/3/2026</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>2/4/2026</i>

HOUSE No. 597

By Representative Hawkins of Attleboro, a petition (accompanied by bill, House, No. 597) of James K. Hawkins and others relative to reimbursement for in-district school transportation costs. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring full reimbursement for in-district school transportation costs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 71B of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting the following section:-

3 Section 14. The state treasurer shall annually, on or before November twentieth,
4 reimburse any city, town, regional school district or independent vocational school for
5 expenditures incurred during the previous fiscal year in the transportation of pupils enrolled in
6 special education programs, in the manner hereinafter defined, provided that such transportation
7 services are required by the individual educational plan of each such pupil, that such services are
8 not normally provided to pupils enrolled in regular day program in said city, town, regional
9 school district or independent vocational school, and that the expenditures for such services are
10 not eligible for reimbursement under section 5A of this chapter. Such reimbursement shall
11 include: first, an amount for each such pupil enrolled in a special education program which is
12 equal to the average transportation services expenditure per pupil enrolled in regular day

13 program in said city, town, regional school district, or independent vocational school during said
14 fiscal year; and second, the entire amount by which each of the average transportation services
15 expenditures per pupil enrolled in each special education program prototype, as defined in
16 regulations promulgated under this chapter, in said city, town, regional school district or
17 independent vocational school during said fiscal year may exceed the aforesaid average
18 transportation services expenditure per pupil enrolled in regular day program. In no instance,
19 however, shall the amount of reimbursement for such excess cost within such special education
20 program prototype exceed one hundred and ten percent of the averages of such excess costs in all
21 cities, towns, regional school districts, and independent vocational schools during the fiscal year
22 in which such expenditures were made.

23 In determining each said average transportation services expenditure per pupil enrolled in
24 a regular day program in each city, town, regional school district, and independent vocational
25 school, the Department of Elementary and Secondary Education shall use the transportation
26 services expenditure per pupil eligible for reimbursement under sections seven A, seven B or
27 sixteen C of chapter seventy-one, whichever is higher, during the same fiscal year. The
28 commissioner of elementary and secondary education may, by regulation, under the direction of
29 the state board of elementary and secondary education, further define the expenditures per pupil
30 to be used in aforesaid computations.

31 SECTION 2. Notwithstanding any general or special law to the contrary, reimbursements
32 authorized under section 14 of chapter 71B of the general laws, as inserted by this act, shall be
33 made in accordance with the following funding schedule: (i) not less than 25 percent of the total
34 eligible state obligation in fiscal year 2026; (ii) not less than 50 percent of the total eligible state
35 obligation in fiscal year 2027; (iii) not less than 75 percent of the total eligible state obligation in

fiscal year 2028; and (iv) not less than 100 percent of the total eligible state obligation in fiscal year 2029 and in subsequent fiscal years.

SECTION 3. Notwithstanding any general or special law to the contrary, reimbursements authorized under section 7A of chapter 71 of the general laws shall be made in accordance with the following funding schedule: (i) not less than 25 percent of the total eligible state obligation in fiscal year 2026; (ii) not less than 50 percent of the total eligible state obligation in fiscal year 2027; (iii) not

less than 75 percent of the total eligible state obligation in fiscal year 2028; and (iv) not less than 100 percent of the total eligible state obligation in fiscal year 2029 and in subsequent fiscal years.